

26SMCV02712 26SMCV02712

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F23%2F2026

Source SHA-256: f4c49aa635268475fbdec8afba8c266f5e9dea79cc485998f53378477510ae5e

Case Number: 26SMCV02712 Hearing Date: July 23, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 23, 2026

CASE NUMBER

26SMCV02712

MOTION

Demurrer

MOVING PARTIES

Defendants Porche Cars North America Inc. and Lithia
Motors, Inc. d/b/a Beverly Hills Porche

OPPOSING PARTY

none

MOTION

This case arises from allegations that Defendants sold Plaintiff a defective 2020 Porche Cayenne Turbo vehicle and failed to repair or replace it in violation of the Song-Beverly Act.

On May 14, 2026, Plaintiff Svetlana Zakharova ("Plaintiff") brought suit against Defendants Porche Cars North America, Inc. and Litia Motors, Inc. d/b/a Beverly Hills Porche ("Defendants") alleging four causes of action under the Song-Beverly Act for (1) breach of express warranty; (2) breach of implied warranty; (3) violation of Section 1793.2; and (4) violation of Section 1793.22 – Tanner Consumer Protection Act.

Defendants now demur to the Complaint for failure to state facts sufficient to constitute a cause of action and uncertainty, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively. The demurrer is unopposed.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint "with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:85, p. 45, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers. (See Fenton v. Groveland Comm. Services Dist. (1982) 135 Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Although Defendants demur in part on the ground of uncertainty, the demurrer is devoid of any arguments explaining how the Complaint is uncertain. As such, Defendants do not demonstrate that any portions of the Complaint are so faulty that Defendants cannot determine what issues must be admitted or

denied, or what claims are directed against them.

Therefore, the Court declines
to sustain Defendants' demurrer on the ground of uncertainty.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

First Cause
of Action – Breach of Express Warranty

Defendants demur to the first
cause of action on the ground that under *Rodriguez v. FCA US, LLC* (2024)
17 Cal.5th 189, 195-206 (hereafter *Rodriguez*), a used motor vehicle,
like the subject vehicle, does not constitute a “new” motor vehicle to which
the Song-Beverly Consumer Warranty Act applies.
Indeed, Plaintiff alleges:

9. On or
about January 2, 2024, Plaintiff purchased a 2020 Porsche Cayenne Turbo bearing
VIN WP1BF2AY4LDA65775 (the “Subject Vehicle”).

(Complaint ¶ 9.) Thus, because Plaintiff alleges she purchased
a 2020 vehicle in January 2024, Plaintiff effectively alleges she purchased a
used vehicle.

Rodriguez
explains “a motor vehicle purchased with an unexpired manufacturer’s new
car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s
new car warranty’ under the Song-Beverly Act’s definition of ‘new motor
vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez*, supra, 17 Cal.5th
at p. 196.) Here, Plaintiff alleges:

Express
warranties accompanied the sale of the Subject Vehicle to Plaintiff by which
Defendants undertook to preserve or maintain the utility or performance of
Plaintiff’s vehicle or to provide compensation if there was a failure in such
utility or performance.

(Complaint ¶¶ 9, 18.)

Although

it is unclear whether the express warranties that accompanied the sale of the subject vehicle were newly-issued for this sale, or remain from when the vehicle was first sold, taking all inferences in a light most favorable to the Plaintiff, as the Court must do on a demurrer, Plaintiff has adequately alleged the subject vehicle was sold with an express new car warranty to withstand a demurrer.

Whether the subject vehicle

was actually sold with an express new car warranty is a factual question to be resolved at later stages of the litigation. To wit, the Court notes that Rodriguez was decided at the summary judgment stage, not at the pleading stage.

ii.

Second Cause

of Action – Breach of Implied Warranty

Defendants argue that the Song-Beverly Act does not impose implied warranty obligations on manufacturer for the sale of used consumer goods.

In support, Defendants cite to Nunez v. FCA US, LLC (2021) 61 Cal.App.5th 385 (hereafter Nunez).

Nunez explains: “in the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer, where there is no evidence the manufacturer played any role in the sale of the used car to plaintiff.” (Id. at p. 398.)

Here, Plaintiff alleges:

14. Defendant PORSCHE CARS NORTH AMERICA, INC., a Delaware Corporation is a “manufacturer” and/or “distributor” under the Act.

15. Defendant LITHIA MOTORS, INC., an Oregon Corporation dba Beverly Hills Porsche, is and was operating and doing business in the State of California as a “retailer” under the Act.

(Complaint

¶¶ 14, 15.)

Thus, again, taken in a light most favorable to Plaintiff, as the Court must do on a demurrer, the Complaint adequately alleges that Porche is a “distributor” and Lithia is a “retailer” to whom the implied warranty obligations apply, even under Nunez.

Whether Defendants, and each of them, actually played any role of the sale of the used car to Plaintiff involves factual questions, to be resolved at later stages of the litigation. Again, the Court notes that Nunez was decided following a jury trial.

iii.

Third Cause
of Action – Section 1793.2

Defendants argue that pursuant to Rodriguez, Civil Code section 1793.2. only applies to a “new motor vehicle.”

But as discussed above, Plaintiff has adequately alleged that the vehicle was “sold with a manufacturer’s new car warranty” under Civil Code section 1793.22, subdivision (e)(2) to withstand demurrer.

iv.

Fourth Cause
of Action – Section 1793.22 – Tanner Consumer Protection Act

Defendants argue that courts have held that a used vehicle sold with a certified pre-owned warranty does not qualify as a “new motor vehicle” for purposes of the Tanner Act. In support, Defendants cite to *Hutchinson v. MBUSA Motor Co.* (LA Cty., Cal.Super., May 2, 2025, No. BC666024) 2025 WL 1422438 and *Crescencio v. Ford Motor Company* (C.D. Cal. 2025), 811 F.Supp.3d 1132, 2025 WL 3438334.

As a threshold matter, neither *Hutchinson* nor *Crescencio* is binding authority, as *Crescencio*, a federal district court case, involved slightly different procedural standards, and *Hutchinson*, is a trial court order.[1]

Further, as discussed above, when viewed in a light most favorable to

Plaintiff, as the Court must do for purposes of demurrer, the Complaint adequately alleges that the subject vehicle was sold to Plaintiff with a new vehicle warranty. Whether it was actually sold with a certified pre-owned warranty is a factual question to be resolved at later stages of the litigation.

CONCLUSION AND ORDER

Therefore, the Court overrules Defendants' demurrer in its entirety.

Defendants shall file and serve an Answer or Answers to the Complaint on or before August 6, 2026.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 23, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

[1] "Although [a court] may not rely on unpublished California cases, the California Rules of Court do not prohibit citation to unpublished federal cases, which may properly be cited as persuasive, although not binding, authority." (Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP (2010) 183 Cal.App.4th 238, 251, fn. 6, citing in part Cal. Rules of Court, rule 8.1115.)